

□ Your Safety Comes First

Some of what you shared suggests you may be dealing with a situation that could put your safety at risk. You are not alone, and help is available right now — you do not need a lawyer or any money to reach it.

If you are in immediate danger, call 911.

You can reach trained, confidential help any time:

- **National Domestic Violence Hotline** — call 1-800-799-7233, or text START to 88788 (<https://www.thehotline.org>)
- **National Dating Abuse Helpline** — call 1-866-331-9474, or text LOVEIS to 22522
- **Eldercare Locator** — call 1-800-677-1116 (<https://eldercare.acl.gov>)
- **Adult Protective Services** — call Contact your local APS agency
- **Stalking Prevention, Awareness, and Resource Center (SPARC)** (<https://www.stalkingawareness.org>)
- **Text the Crisis Text Line:** text HOME to **741741** (open 24/7, for any kind of crisis)
- A safety plan can help you prepare for emergencies. The National DV Hotline can help create one.

Asking a court to protect you. If someone has hurt you or made you afraid, you can ask a court for an **Order for Protection** (sometimes called a

restraining order). It is a free request you can make yourself: the court clerk's office or a local advocate can give you the forms and walk you through them, often the same day. A domestic violence advocate (reachable through the hotline above) can help you fill them out and can go with you.

You get to decide what feels safe for you. The steps above are here whenever you are ready.

□ Deadlines & Time-Sensitive Items

Read this first. Missing a legal deadline can end a case. The dates below are estimates generated automatically — **always confirm the exact date with the court or a lawyer.**

⚠ **There is an appointment on July 16th where I am supposedly supposed to sign listing papers.**

- **Estimated deadline:** 2026-07-16
- **Basis:** The court's own summons, hearing notice, or scheduling order setting this date — a court's order or summons is the governing primary authority for a court-scheduled appearance (confirm the date against the document itself).
- **Triggering event:** hearing on 2026-07-16
- **Jurisdiction:** MN

- This is a date the court gave you directly (a hearing, court date, or stated deadline). Estimated — confirm the exact date with the court or a lawyer.

⚠ **The bank sent a letter dated June 26th saying they flagged unusual activity.**

- **Estimated deadline:** date unclear — this time-sensitive item needs an exact date.
- **Triggering event:** deadline on 2026-07-06
- **Jurisdiction:** MN
- Estimated — confirm the exact date with the court or a lawyer.

⚠ **I asked Dale about the boat on June 14th. Dale grabbed my wrist hard enough to leave a bruise.**

- **Estimated deadline:** date unclear — this time-sensitive item needs an exact date.
- **Triggering event:** incident on 2026-06-14
- **Jurisdiction:** MN
- Estimated — confirm the exact date with the court or a lawyer.

Executive Summary

This intake found 14 possible legal problems in Minnesota. The strongest issues are Breach of Fiduciary Duty, Undue Influence, and Possible Invalidity of Power of Attorney. There is a deadline coming up. You have an appointment on July 16th to sign some papers. This date is also shown in the court's summons or order. Check this date against the document to

be sure. Safety problems were found in this story. You can see the safety resources below. The analysis is 75% done. There are 15 follow-up questions below to improve the assessment.

Completeness Score: 75%

Triage & Routing Recommendations

Primary Practice Area: General Civil

Primary Jurisdiction: General

Complexity: High

Urgency: Emergency

Ranked Recommendations

1. General Civil (Score: 0.59)

General Civil practice area (82% of claims); mixed jurisdictions (64% concentration); high complexity; emergency urgency

Factor	Score
Practice Area Match	82%
Jurisdiction Match	64%
Complexity Score	20%

2. Public Benefits (Score: 0.36)

Public Benefits practice area (18% of claims); mixed jurisdictions (64% concentration); high complexity; emergency urgency

Factor	Score
Practice Area Match	18%

Factor	Score
Jurisdiction Match	64%
Complexity Score	20%

Action Items

Documents to Gather

- [] **[URGENT]** Element 'Undue Influence' is not yet supported by any facts
 - **Claim:** Undue Influence / Lack of Capacity
 - **Element:** Undue Influence
- [] **[HELPFUL]** Element 'Causation' is not yet supported by any facts
 - **Claim:** Assault
 - **Element:** Causation
- [] **[HELPFUL]** Element 'Intent or Recklessness' is not yet supported by any facts
 - **Claim:** Emotional Distress
 - **Element:** Intent or Recklessness

Follow-up Steps

- [] **[URGENT]** Confirm the deadline for: There is an appointment on July 16th where I am supposedly supposed to sign listing papers. (estimated 2026-07-16; The court's own summons, hearing notice, or scheduling order setting this date — a court's order or summons is the governing primary authority for a court-scheduled appearance (confirm the date against the document itself).). This is a date the court gave you directly (a hearing, court

date, or stated deadline). Estimated — confirm the exact date with the court or a lawyer.

◦ **Deadline:** 2026-07-16

- [] **[URGENT]** You asked if you can 'undo' the power of attorney. Yes — as long as your mind is clear, you can revoke it at any time with a signed, dated writing, and it takes effect against others (like the bank) once they actually get notice (Minn. Stat. § 523.11). The key step is delivering written revocation to BOTH your son and the bank right away. Would you like help doing that this week? [Authority: Minn. Stat. § 523.11, subd. 1 (a competent principal may revoke a power of attorney by a signed, dated writing; effective as to a third party on actual notice)]
- [] **[URGENT]** What you described — being physically hurt or threatened by a family or household member — may qualify you for an Order for Protection (a court order that can be issued the same day you ask, before any hearing). In Minnesota this is Minn. Stat. § 518B.01; other states have an equivalent. Would you like information about asking the court for one now, separate from any other case? [Authority: Minn. Stat. § 518B.01 (Order for Protection; ex parte relief available)]
- [] **[URGENT]** Because you may be a 'vulnerable adult' (relying on your son for care after surgery), there is a special court order that can quickly FREEZE the account draining and block the house sale — an Order for Protection Against Financial Exploitation of a Vulnerable Adult (Minn. Stat. § 609.2334), which a judge can issue right away in an emergency. This can also be reported to the state (MAARC, Minn. Stat. § 626.557). Would you like to ask the court for this before the July 16 appointment? [Authority: Minn. Stat. § 609.2334 (Order for Protection Against Financial Exploitation of a Vulnerable Adult — ex parte relief available); Minn. Stat. § 626.557 (vulnerable-adult reporting / MAARC)]
- [] **[URGENT]** Even under a power of attorney, your son could pay himself or transfer your money to himself ONLY if the document specifically allowed it (Minn. Stat. § 523.24) — if that box was left

- blank, those transfers and the 'caregiver pay' likely exceeded his authority, revocation or not. A missing notary can also make the whole POA invalid (Minn. Stat. § 523.01). Do you have the actual POA document so a lawyer can check what was and wasn't authorized? [Authority: Minn. Stat. § 523.24 (statutory short-form POA authorizes self-gifting/self-transfers only if expressly elected); Minn. Stat. § 523.01 (valid POA requires acknowledgment)]
- [] **[URGENT]** Your son grabbed your wrist hard enough to bruise and threatened you in your own home. Because he is a family/household member, you can ask for an Order for Protection that a judge can grant the same day (Minn. Stat. § 518B.01); a Harassment Restraining Order (Minn. Stat. § 609.748) is a backup. This is separate from the money issues. Do you have the photo of the bruise and would you feel safer with such an order? [Authority: Minn. Stat. § 518B.01 (Order for Protection — a son living in the home is a family/household member; ex parte relief); Minn. Stat. § 609.748 (Harassment Restraining Order fallback)]
 - [] **[URGENT]** You mentioned paying extra money (like a cash pet deposit) with no receipt. Deposits are regulated — in Minnesota the landlord must account for them, pay interest, and return them with an itemized statement (Minn. Stat. § 504B.178); other states have an equivalent. A cash payment with no receipt can still count. How much did you pay, when, and do you have any proof (texts, witnesses, bank withdrawal)? [Authority: Minn. Stat. § 504B.178 (security deposits: receipt, interest, return); § 504B.172]
 - [] **[IMPORTANT]** Potential claim 'Litigation Criminal Defenses' has not been explored with fact mappings
 - **Claim:** Litigation Criminal Defenses
 - [] **[IMPORTANT]** Potential claim 'Litigation Defenses' has not been explored with fact mappings
 - **Claim:** Litigation Defenses

- [] **[IMPORTANT]** Potential claim 'Breach of Fiduciary Duty' has not been explored with fact mappings
 - **Claim:** Breach of Fiduciary Duty
- [] **[IMPORTANT]** Potential claim 'Negligence by Financial Institution' has not been explored with fact mappings
 - **Claim:** Negligence by Financial Institution
- [] **[IMPORTANT]** Potential claim 'Intimidation and Coercion' has not been explored with fact mappings
 - **Claim:** Intimidation and Coercion
- [] **[IMPORTANT]** Potential claim 'Unlawful Search and Seizure' has not been explored with fact mappings
 - **Claim:** Unlawful Search and Seizure
- [] **[IMPORTANT]** Potential claim 'Possibility of Forced Relinquishment of Property' has not been explored with fact mappings
 - **Claim:** Possibility of Forced Relinquishment of Property
- [] **[IMPORTANT]** Potential claim 'Assault or Threatening Behavior' has not been explored with fact mappings
 - **Claim:** Assault or Threatening Behavior
- [] **[IMPORTANT]** Potential claim 'Vulnerable Adult Protection Claims' has not been explored with fact mappings
 - **Claim:** Vulnerable Adult Protection Claims
- [] **[IMPORTANT]** Was Lorraine's mental capacity assessed by a medical professional at the time she signed the power of attorney, and are there records indicating her state of mind?
 - **Claim:** Undue Influence / Lack of Capacity

- [] **[IMPORTANT]** Have the unusual withdrawals and transfers been reported to the appropriate authorities as potential financial exploitation under Minnesota law?
 - **Claim:** Financial Exploitation of a Vulnerable Adult
- [] **[IMPORTANT]** Was a police report filed regarding the incident where Dale grabbed Lorraine's wrist, and are there any witnesses or evidence corroborating this claim?
 - **Claim:** Assault
- [] **[IMPORTANT]** Has Lorraine documented instances of emotional distress, and are there any mental health records that reflect her condition due to Dale's actions over time?
 - **Claim:** Emotional Distress
- [] **[IMPORTANT]** Is there a formal complaint or legal action initiated regarding Dale's breach of fiduciary duty as her agent, and has this been evaluated by a legal professional?
 - **Claim:** Breach of Fiduciary Duty
- [] **[IMPORTANT]** Has any legal assessment been made regarding the validity of the power of attorney considering Lorraine's state of mind at the time it was executed?
 - **Claim:** Invalid Power of Attorney
- [] **[IMPORTANT]** Was the financial institution notified about the suspicious withdrawals, and did they fulfill their reporting obligations under Minnesota law promptly?
 - **Claim:** Negligence by Financial Institution
- [] **[IMPORTANT]** Have reports been made to the Adult Abuse Reporting Center regarding Lorraine's situation, and what was the outcome of those reports?
 - **Claim:** Potential Financial Abuse Allegations